

**STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: Debra Sargent
License No. 068-31

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Docket No. MH08-0208

**Decision on
UNPROFESSIONAL CONDUCT CHARGE**

Board Members Participating:

Edmund G. Fischer
Alice S. Kitchell, LCMHC
Robert Claflin, LCMHC
Raymond McCandless

Appearances:

for Petitioner, State of Vermont: Edward Adrian
for Respondent: Charles S. Martin

Presiding Officer: Larry S. Novins

**FINDINGS OF FACT, CONCLUSIONS OF LAW,
AND ORDER**

The Board of Allied Mental Health Practitioners held a hearing in the above matter on January 21, 2009 at the Office of Professional Regulation hearing room at the National Life Building in Montpelier, Vermont.

The prosecution has the burden of proof in this matter. To prevail on any unprofessional conduct charge, it must prove the charge by a preponderance of the evidence.

Background

The prosecution alleges in its Specification of Charges that Ms. Sargent engaged in activities that met her personal needs at the expense of a client, more specifically that she kept a dog near or in her office knowing that a client who had dog triggered post traumatic stress disorder would be there. The prosecution alleges that this conduct violates the National Board or Certified Counselors Code of Ethics and is a failure to practice competently.

Findings of Fact

Based upon the evidence presented, the Board finds as follows:

1. Debra Sargent is licensed as a clinical mental health counselor by and subject to the disciplinary authority of this Board. 26 V.S.A. § 3263(a)(4), 3 V.S.A. §§ 129, 129(a), the

- administrative rules of the Board of Allied Mental Health Practitioners, and the Rules of the Office of Professional Regulation.
2. Ms. Sargent practices in Montpelier, Vermont. She had a dog "Sherman Lee" which she owned for approximately ten years. The dog assisted her in the early 1990's. Ms. Sargent had suffered two brain hemorrhages. She was living in Denver, Colorado at the time. The dog assisted her at times when she needed help returning to her residence. Ms. Sargent was not practicing at the time.
 3. Ms. Sargent resumed her practice in the mid 1990's. Her dog, now a close companion, accompanied her to work. The dog is well trained, but is not specifically trained as a "therapy dog." Ms. Sargent has with apparent success used the dog to assist her clients. The dog, a herding dog, often barks, then goes to the waiting area and escorts or herds clients into Ms. Sargent's office.
 4. In January 2008 S.H. came to Ms. Sargent three times.
 5. Both S.H. and Ms. Sargent testified at this hearing. S.H. was an articulate and confident witness. In the critical areas outlined below we found S.H.'s testimony to be credible. We note that Ms. Sargent's testimony, in many respects, does not contradict the salient points of S.H.'s testimony.
 6. S.H. has a long history of being afraid of dogs.
 7. S.H. came to see Ms. Sargent with a finding from her physician that she suffered from post traumatic stress disorder (PTSD). S.H. believed she had PTSD. We do not determine whether S.H. suffered from PTSD. We do find that S.H. came to Ms. Sargent with enough information and documentation to make PTSD a possible diagnosis. S.H.'s primary reason for seeing Ms. Sargent was PTSD like symptoms related to people she encountered in her employment. Her symptoms included fear of various people and things. She did not come to Ms. Sargent for help with a fear of dogs.
 8. Ms. Sargent did not give S.H. any advance warning that she usually has her dog with her while seeing clients.
 9. On her first visit to Ms. Sargent on January 17, 2008 S.H. noticed an empty dog crate in the office. She told Ms. Sargent that she was afraid of dogs. Her exact language at the time is unclear. Ms. Sargent admitted that S.H. told her of her fear of dogs "due to a past history with dogs." (State's Ex. 2).
 10. On her second visit to Ms. Sargent on January 24, 2008, S.H. saw dog booties drying on a heater in Ms. Sargent's waiting room. She asked Ms. Sargent if the dog was in the office and again told Ms. Sargent of her fear of dogs. Ms. Sargent told her the dog was not in the office. Ms. Sargent's letter dated April 3 State's Ex. 2 confirms this version of events. Though the dog usually was at the office, the dog was not in the office on the 24th because Ms. Sargent had scheduled one out-of-office appointment. (State's Ex. 2).
 11. Before S.H.'s third visit to Ms. Sargent's office on January 28, 2008 Ms. Sargent called S.H. to confirm that she would make her appointment. Ms. Sargent did not tell S.H. that her dog would be in the office with her when S.H. arrived.
 12. On that third visit Ms. Sargent met S.H. in the waiting room. She invited her into her office. Ms. Sargent entered the office only to see Ms. Sargent's dog, a Swedish Vallhund, sitting in Ms. Sargent's chair. Ms. Sargent had the dog on a leash "so that [S.H.] would not be alarmed." (State's 2 at 2.1). The dog barked at S.H. As Ms. Sargent noted in a letter, S.H. repeated her fear of dogs once more. S.H. was very anxious. Ms.

- Sargent said "I told her that if she would sit down and start working, Sherman would stop and be relaxed." Ms. Sargent noted that S.H. could not do this.
13. Ms. Sargent suggested that the situation with S.H.'s fear of dogs presented an opportunity to deal with fear which was a part of PTSD.
 14. S.H. had no desire to work on the additional fear of dogs, which was not a concern of S.H.'s until Ms. Sargent and her dog made it one. Rather than remove the dog, Ms. Sargent told the S.H. what she should do to achieve a calm environment.
 15. Ms. Sargent wrote a letter confirming most of what S.H. said. S.H. was unable to remain seated. She stood up. The dog began barking at S.H. While in Ms. Sargent's office, S.H. was agitated, the dog was agitated, and that the dog's presence only exacerbated the fears S.H. came to Ms. Sargent for in the first place.
 16. Ms. Sargent wrote that her dog was "confused." "Sherman was confused and barked more. Her [S.H.'s] anxiety was palpable and he [the dog] is very aware of the energy in his environment." (State's Ex. 2 at 2.1).
 17. Ms. Sargent did not remove the dog from her office.
 18. S.H. was unable to stay with the dog there. She told Ms. Sargent that she could not continue with her with the dog present. Ms. Sargent's writings confirm this. S.H. left.
 19. Ms. Sargent's written statement reveals that she was concerned about the dog's response as much as her client's response to the dog she feared.
 20. Ms. Sargent's letter (State's Ex. 2) shows a lack of understanding of her client's needs. For example, she wrote, "perhaps a call to [S.H.] would have helped her discuss her experience at my office on January 28th and allow her to change her mind about continuing to work with me."
 21. There was no indication that S.H. ever consented to the dog being in the room with Ms. Sargent and her.

Discussion

Ms. Sargent's long relationship with her dog appears to have been beneficial to many of her clients. That relationship apparently has not caused problems in the past. In keeping her dog with her in this case, however, Ms. Sargent was insensitive to S.H.'s aversion to dogs and her need for a safe environment for treatment. She did not provide S.H. with a safe environment. Rather, Ms. Sargent's insistence on having her dog with her only added to S.H.'s anxieties and fears. Ms. Sargent's priority was to keep her dog in the office. To do that Ms. Sargent responded to the situation she created by suggesting that S.H. try to working on her fear of dogs.

Ms. Sargent did not separate her own needs and her desire to have her dog with her from her client's needs for a safe place for treatment. She did not focus on her client's desire to deal with her presenting problems. Ms. Sargent's own needs and desire to have the dog present overshadowed her concerns for her client.

Ms. Sargent provided unacceptable client care. Her conduct in this case failed to conform to the essential standards of acceptable and prevailing practice.

Conclusions of Law

1. The prosecution has proved by a preponderance of the evidence that Ms. Sargent violated 3 V.S.A. § 129a(b)(1) and (2). "Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) performance of unsafe or unacceptable patient or client care (2) failure to conform to the essential standards of acceptable and prevailing practice." This is unprofessional conduct.

Order

For the violations found above Ms. Sargent's license is **Warned**. To enable Ms. Sargent to learn from this and practice in a manner so that the public health, safety and welfare is adequately protected, conditions on Ms. Sargent's license are needed.

The following conditions are imposed:

1. Ms. Sargent shall practice under supervision for a minimum of one year. The supervision shall occur no less than one hour every two weeks. Her supervisor must be pre-approved by the Board. The supervisor may be a clinical mental health counselor, marriage and family therapist, psychologist, or psychiatrist who is licensed in Vermont and has a minimum of three years licensed experience.
2. Within 60 days of this decision Ms. Sargent shall submit the names of three eligible candidates willing to supervise her practice.
3. The proposed supervisors shall submit a letter to the Board a letter acknowledging familiarity with this Decision and willingness to abide by the terms of supervision herein. He or she should, if possible, indicate a familiarity with the use of dogs as a part of counseling. The proposed supervisor shall disclose his or her relationship with Ms. Sargent, if any, and information about his or her practice, training and experience so that the Board can be assured that the supervisor can provide appropriate objective supervision.
4. The supervision shall be general and include specific attention to Ms. Sargent's unprofessional conduct and how her use of her dog in her practice affects her clients.
5. The supervisor shall submit quarterly the reports to the Board addressing Ms. Sargent progress in addressing the issues discussed in this Decision and practice in general.
6. Ms. Sargent shall take no less than six hours of continuing education, pre-approved by the Board, which addresses the use of dogs in therapy. This course will not be counted toward renewal continuing education requirements. This requirement shall be fulfilled as soon as possible, but within one year.
7. After one year of supervised practice Ms. Sargent may petition the Board for removal of the conditions. If the Board determines that Ms. Sargent has fulfilled the requirements set

forth in this Order and that her supervision reports show that supervised practice is not longer necessary, the conditions will be removed.

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners.

A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, National Life Bldg., North, FL2, Montpelier, VT 05620-3402 within 30 days of the entry of this order.

If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a. To request a stay of the Board's decision, please refer to the attached stay instructions.

Vermont Board of Allied Mental Health Practitioners

By: Raymond McCandless
Raymond McCandless, Acting Chair

Dated: January 26, 2009

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 1/27/09